

SELLER RESOURCES

MN Seller Disclosure Reference

The lakeshore-specific items most likely to come up — and how to fill them out so they don't come back at inspection.

MinnesotaLakeHomesForSale.com · Updated May 2026

Why this exists

Minnesota requires sellers of residential property to provide a written Seller's Property Disclosure Statement before any purchase agreement is signed (Minn. Stat. § 513.52–.60). The form is generic — but the items that come up in dispute on lake homes are very specific: shoreline, septic, water, easements, and post-purchase rental restrictions.

This reference walks the lakeshore-specific portions of the disclosure with example language. It is not legal advice — your listing agent and, where appropriate, an attorney should review your final disclosure. But it should keep you from missing the items most often missed.

First principle

Disclose what you know. Don't guess. If you're unsure whether a 1990 septic system is compliant, write "unknown — buyer to verify with current Certificate of Compliance." Guessing creates liability that knowing you don't know does not.

The Disclosure Statement structure

The MN form follows a yes/no/unknown structure with a comments field after each section. The lakeshore-relevant sections are:

- Water — Well
- Sewer — Septic
- Property — Drainage, easements, encroachments
- Property — Shoreline, lakeshore alterations
- Property — Boundary disputes, surveys
- Property — Past rental use
- Property — Wetlands, flood, environmental
- Property — Hazardous substances, fuel tanks

1. Well

Items to address

- Type (drilled, sandpoint, shared), depth, casing material
- Year drilled or installed
- Location relative to property (and any shared-use rights)

- Most recent water-quality test (date, what was tested, results)
- Treatment system (filter, softener, RO) — age and service
- Known periods of failure or contamination

Example language

“Drilled well, 180 ft, installed 2011 (well log on file). Tested 4/2026: passed total coliform, E. coli, nitrates. Iron present at 0.4 mg/L; treated by water softener installed 2021. No failures or contamination known.”

2. Septic

Items to address

- System type (mound, conventional, chamber, holding tank, shared)
- Year installed; designer / installer if known
- Most recent Certificate of Compliance (date, county, conditions)
- Most recent pump-out (date, service)
- Holding-tank service contract (if applicable)
- Setbacks: well, OHWM, property lines
- Known failures, repairs, or replacements

Example language

“Mound system installed 2008. Crow Wing County Certificate of Compliance issued 3/2026 (Compliant). Pumped 5/2024 (Anderson Septic, receipt available). Tank lid riser to grade. No known failures.”

If non-compliant

Disclose the non-compliance directly. Many lakeshore counties require compliance at sale; non-compliance is fixable but not concealable. Hiding it leads to deal failure at inspection plus post-closing legal exposure.

3. Shoreline & lakeshore alterations

Items to address

- Shoreline material — natural, riprap, retaining wall, sandblanket
- Past alterations — riprap installed, retaining wall built, sandblanket added
- Permits on file for any alterations (sandblanket, dock, riprap above thresholds)
- Erosion history
- Ice-heave damage (current or repaired)
- Shoreland buffer — vegetated strip status
- Any DNR or county action regarding shoreline use

Example language

“100 ft of frontage; northern 60 ft natural with vegetated buffer, southern 40 ft riprap installed 2018 (DNR permit on file). Sandblanket re-applied 2022 (10 yd³ under existing permit). No erosion or ice-heave damage known. No DNR or county actions.”

4. Drainage, easements, encroachments

Items to address

- Recorded easements — utility, driveway, lake access, shared dock
- Unrecorded use rights you're aware of (these matter, even unrecorded)
- Boundary disputes, current or past
- Drainage issues — standing water, runoff onto neighbors, drain tiles
- Encroachments — your improvements onto neighbors, neighbors onto you
- Survey on file (date, conditions)

Example language

“Recorded utility easement along east property line for power and phone. Recorded shared-driveway easement with parcel to north (50/50 maintenance, recorded 1996). No boundary disputes. Survey from 2019 on file. No known encroachments.”

5. Boundary disputes & surveys

Even if there's no active dispute, disclose any past disagreement, fence line that doesn't match the survey, or shoreline-frontage measurement that has been questioned. On lake parcels, frontage matters to value — get this right.

6. Past rental use

If the property has been rented (long-term or short-term), disclose. Some townships have STR registration requirements, occupancy caps, and trash/parking rules; buyers may rely on a continuation of past use, and a property's rental history can be a contractual representation.

- Years rented and approximate gross rental income
- Long-term tenant or short-term (vacation rental)
- Township ordinance status (registered? grandfathered? compliant?)
- Any complaints, citations, or rule changes affecting future rentals

7. Wetlands, flood, environmental

Lake parcels often have wetland portions or flood-prone areas mapped by FEMA or the local watershed district. Disclose any maps, prior flood events, sump-pump history, or DNR-protected vegetation on the parcel.

- FEMA flood zone status (A, AE, X, etc.)
- Mapped wetlands on parcel
- Past flood, ice-jam, or shoreline-event damage
- Sump pump operation; how often it runs in spring
- DNR-protected vegetation (rare plants) on file
- Asbestos, lead paint, radon (radon testing recommended for any year-round property)

8. Hazardous substances & fuel tanks

- Underground or aboveground fuel-oil tanks (active or decommissioned)
- Propane tank ownership (owned, leased — name of provider)
- Past spills, remediation, or abandoned-tank certifications
- Lead paint disclosure (federal requirement for pre-1978 housing — separate form)
- Mold: known or remediated areas

Common errors and how to avoid them

- **“Unknown” without basis.** If a reasonable owner would know, “unknown” reads as evasion. Either find out or write a sentence explaining the basis (“purchased 2024; no records of pre-2024 well use”).

- **Skipping shoreline alteration history.** Most non-compliant sandblankets and riprap were installed without permits years ago. Disclose; let the buyer accept or remediate.
- **Forgetting shared rights.** A handshake right-of-way that everyone's used for fifteen years is still a use right. Disclose.
- **Conflating cabin and year-round use.** If you've never had the property assessed for year-round occupancy, say so — buyers underwriting for year-round may rely on this.

If you discover something after the disclosure is signed

Update the disclosure in writing immediately. The MN form is amendable; the buyer can accept the amended disclosure or void the contract. Updating after discovery protects you. Sitting on it does not.

Bottom line

Disclose carefully, in writing, with documentation attached when possible. The buyer can accept what you disclose. They cannot unwind what you concealed.

Companion resources

Minnesota Lake Home Seller Guide · Pre-Listing Cabin Prep Checklist · Seller's Net Proceeds Calculator. Discuss any questions about the form with your listing agent and, where the issues are substantial, a real-estate attorney.

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